

cannot be applied here for summary judgment where the trial court cannot weigh evidence. (*Binder, supra*, 75 Cal.App.4th at 840 [It is improper for the court to weigh evidence on a motion for summary judgment or adjudication].)

Likewise, the Rafeedies' reliance on *Hayden v. Paramount Productions Inc.* (1939) 33 Cal.App.2d 287, 293 is inapplicable here because the court in *Hayden* found the plaintiff knew of the dangerous condition and deliberately moved toward the danger. The Rafeedies thus fail to present legal authority applicable to the facts of the instant case.

In opposition, Plaintiff again relies on *Ortega* and argues that because the Rafeedies had constructive knowledge of the dangerous condition, the injury was foreseeable, and the Rafeedies are liable. However, as discussed previously, Plaintiff misapplies *Ortega* and in fact presented evidence that there was no reasonable time for the Rafeedies to have notice of the dangerous condition.

Given the foregoing, a trial issue of material fact exists as to the existence of an independent intervening act.

The motion for summary judgment is **GRANTED**. Moving party is ordered to give notice of ruling within 10 days of this order. Defendants Issam and Lydia Rafeedie are ordered to submit a **proposed judgment in their favor within 30 days of this order**.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501418	PATTERSON DENTAL SUPPLY, INC vs ZAREH	MOTION FOR ORDER FOR ATTORNEY'S FEES AND COSTS OF ENFORCING JUDGMENT

Tentative Ruling:

This motion is unopposed. Motion is granted. Proposed order granting motion has been signed and ordered filed with the Court. Moving party to give notice of ruling. Moving party to submit a proposed amended judgment within 30 days of this order. The matter is set for an OSC on 8/24/2026 regarding receipt of a proposed amended judgment.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600575	CORTEZ vs ASBURY MANAGEMENT SERVICES, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Moving party: Defendant, Asbury Management Services, LLC ("Defendant")

Responding party: Plaintiff, Robert Cortez ("Plaintiff")

Defendant brings a motion to compel arbitration of Plaintiff's claims. This is a representative action under the California Private Attorneys General Act of 2004 ("PAGA", Lab. Code, § 2698 et seq.). On January 23, 2026, Plaintiff filed his Complaint in this action, alleging a single cause of action for violation of PAGA against the alleged employer Asbury Management Services, LLC. Plaintiff's claim is based on alleged violations of the various wage and hour regulations under the Labor Code, including (1) the failure to pay wages for all hours worked at the legal minimum wage, (2) failure to pay wages for overtime hours worked at the overtime rate of pay and/or failure to pay overtime wages at the proper rate of pay, (3) failure to pay wages to hourly non-exempt employees for workdays that Defendants failed to provide legally required and compliant meal periods and/or failure to pay period premium wages, (4) failure to pay wages to hourly non-exempt employees for workdays that Defendants failed to provide legally required and compliant rest periods and/or failure to pay rest period premium, (5) failure to indemnify for losses and expenditures incurred as part of employment, (6) failure to timely pay earned wages during employment, (7) secret payment of lower wages than designated by statute, (8) failure to provide complete and accurate wage statements, and (9) failure to pay employees all wages due at time of termination/resignation. (See Complaint, ¶¶ 10-39.)

In response to the Complaint, Defendant has filed the instant motion to compel Plaintiff to arbitrate his individual PAGA claims. Defendants argue that Plaintiff's claims must be compelled to arbitration because he executed a valid arbitration agreement as part of his ongoing employment that covers all claims whether or not they arise out of the employment relationship. Defendant argues that the Court has proper grounds to compel Plaintiff's individual PAGA claims to arbitration in light of the U.S. Supreme Court decision in *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639 (Viking River). Defendants argue that the nonindividual PAGA claims which remain pending in court must be stayed until the resolution of the arbitration proceeding. (*Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1121-1122 [plaintiff who is compelled to arbitrate his individual PAGA claims does not lose standing simply by being compelled to arbitration individual claims]; Code Civ. Proc., 1281.4.)

Plaintiff, in opposition, argues that the motion should be denied on multiple grounds. Plaintiff first points out that the agreement expressly excludes from the scope of arbitrable claims any disputes brought on a "private attorney general basis" and based thereon argues that the claims asserted in this action is not covered by the arbitration agreement as such phrase refers generally to both individual and non-individual claims brought under PAGA because even individual claims are necessarily brought on a "private attorney general basis." Plaintiff argues that the U.S. Supreme Court's holding in *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639 does not lead to a different result because the arbitration agreement in this case excludes PAGA actions generally and did not contemplate the individual PAGA claim versus nonindividual PAGA claim distinction and an order severing Plaintiff's individual claim to be subject to arbitration would be rewriting the contract. Moreover, Plaintiff argues that the agreement is unenforceable on unconscionability grounds. Plaintiff argues that the manner in which the agreement was presented to him as condition to continual employment indicates that the agreement is a contract of adhesion and therefore

procedurally unconscionable. Plaintiff also argues that the agreement's language requiring that an employee's claims be brought solely in an individual capacity, and not "in a private attorney general capacity," is tantamount to a wholesale waiver of representative claim under PAGA which is unenforceable under California law, and hence substantively unconscionable. Plaintiff argues that, because the illegal waiver cannot be severed from the agreement, such substantively unconscionable term permeates the agreement and warrants denial of the motion.

Defendant argues that the language Plaintiff relies on does not narrow the scope of arbitrable claims under the agreement but only restricts the claims from being brought on a representative basis. It argues that, even if the language of the agreement is ambiguous, the severability clause preserves the ability to arbitrate Plaintiff's individual claim. Defendant also argues that the arbitration agreement is not unconscionable as it meets the standards set forth *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (*Armendariz*).

The motion will be denied.

Analysis

I. The motion to compel arbitration is denied.

a. A valid arbitration agreement exists between Defendants and Plaintiff.

In ruling on a motion to compel arbitration, the trial court considers the two "gateway issues" of arbitrability: (1) whether there is an agreement to arbitrate between the parties, and (2) whether the agreement covered the dispute at issue." (*Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 960, citing *Howsam v. Dean Witter Reynolds, Inc.* (2002) 537 U.S. 79, 84.) As such, the first threshold question when presented with a petition to compel arbitration is whether there is an agreement to arbitrate. (*Cheng-Canindin v. Renaissance Hotel Associates* (1996) 50 Cal.App.4th 676, 684; See 9 USC §2; Code Civ. Proc., §1281.) "Under the FAA, state contract law applies in order to "determine whether the parties have entered a binding agreement to arbitrate." [Citations.]' [Citation.]" (*Marenco v. DirecTV LLC* (2015) 233 Cal.App.4th 1409, 1412.) Here, as Defendant argues, the arbitration agreement in question should be governed by the Federal Arbitration Act ("FAA"). This point is not disputed by Plaintiff.

"In California, '[g]eneral principles of contract law determine whether the parties have entered a binding agreement to arbitrate.'[Citation.]" (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US) LLC* (2012) 55 Cal.4th 2223, 236; Code Civ. Proc., §1281.2 [requiring court to order arbitration "if it determines that an agreement to arbitrate exists".]) The party seeking to enforce the arbitration clause bears the burden of proving the existence of an arbitration agreement, and the party opposing enforcement bears the burden of proving any defense such as unconscionability. (*Ibid.*)

“As a preliminary matter the [trial] court is only required to make a finding of the agreement’s existence, not an evidentiary determination of its validity. [Citation.]” (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058 [defendant employer met its initial burden by attaching to petition to arbitrate a copy of the purported arbitration agreement bearing employee’s electronic signature]; *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219.)

Here, Defendant has made the preliminary showing necessary for the court to find that an arbitration agreement exists between the parties by attaching a copy of the arbitration agreement to the supporting declaration of Defendant’s Human Resources Director, Eric Coleman, whose responsibility is to maintain compliance of Defendants’ online employee management and the onboarding of employees through the use of a platform called Dayforce. (Coleman Decl., ¶¶ 9-10.) Further according to the declaration, Coleman is familiar with and has access to Defendant’s employee files and has reviewed Plaintiff’s employment files containing a copy of the arbitration agreement electronically executed by Plaintiff on March 05, 2026. A copy of the arbitration agreement is attached to the declaration as an exhibit. (Coleman Decl., ¶ 12, Ex. A.)

Plaintiff does not deny signing the arbitration agreement. Instead, Plaintiff argues that Defendant has not met the showing that Plaintiff’s claims alleged in his Complaint are covered by the scope of the arbitration agreement.

b. The Agreement does not cover the PAGA claims alleged in the Complaint as arbitrable claims.

The language of the arbitration agreement should determine whether it applies to a particular dispute. (See *Rebolledo v. Tilly’s, Inc.* (2014) 228 Cal.App.4th 900, 913 [the parties’ intention is determined from the writing alone (Civ. Code, §1639)].) The burden is on the party opposing a petition to compel arbitration to show the arbitration agreement cannot be interpreted to cover the dispute in question. (*Buckhorn v. St. Jude Heritage Medical Group* (2004) 121 Cal.App.4th 1401, 1406.)

Here, the arbitration agreement contains broadly worded language to include all claims between the parties, whether or not they arise out of the employment relationship:

2. DISPUTES SUBJECT TO ARBITRATION.

A. Disputes subject to arbitration are all Disputes between the parties which may otherwise be brought in a court or before a governmental agency, whether or not arising out of or related to the Individual’s application for employment, employment, or termination of employment with the Company, and whether or not arising before, during or after any employment relationship between the parties. Also subject to arbitration are disputes involving any person or entity whose liability or right of recovery derives from a Dispute that is covered by this Agreement (e.g., spouse, heir, partner, agent, subsidiary or parent corporation, affiliate, shareholder, successor or

assign of a party. (Coleman Decl., ¶ 12, Ex. A [Arbitration Agreement, Section 2.A].)

The agreement also includes language regarding waiver of class, collective, or representative action, by which Plaintiff agreed to bring any disputes on an individual basis only:

D. Disputes submitted to arbitration pursuant to this Agreement shall be arbitrated on an individual basis and not on a consolidated, class, collective, or private attorney general basis, unless the parties agree otherwise in a writing signed by all parties. The parties expressly waive any right to arbitrate as a class representative, as a class member, in a collective action, or in or pursuant to a private attorney general capacity, and there shall be no joinder or consolidation of parties. Any arbitration shall be brought on a separate and individual basis. In the event an arbitrator or court determines a claim may be brought as a class or in a collective action, then the agreement to arbitrate that claim is null and void and such class or collective action must be brought in the appropriate court system and not in arbitration. In such case, the provision of Section 7, Waiver of Jury Trial set forth below shall still apply. (Id. at Section 2.D.)

Defendant argues that the above language is broadly worded to include any claims brought by an employee on an individual basis. Defendant argues that in light of the U.S. Supreme Court's holding in *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, Plaintiff is required to arbitrate his "individual PAGA claims," separate from the non-individual PAGA claims of the aggrieved employees.

It has been the law in California that arbitration agreement requiring employees, as condition of employment, to agree to a wholesale waiver of right to bring PAGA representative action against the employer is unenforceable. As held by the California Supreme Court in *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, a waiver of PAGA claims are unenforceable and not preempted by the FAA. Before *Viking River* was decided, in California a single representative PAGA claim could not be "split into an arbitrable individual claim and a nonarbitrable representative claim." (*Williams v. Superior Court (Pinkerton Governmental Services, Inc.)* (2015) 237 Cal.App.4th 642, 649.)

On June 15, 2022, *Viking River, supra*, 596 U.S. 639 was decided by the U.S. Supreme Court, which held that an arbitration agreement between a former employer and employee that purportedly waived PAGA representative claims was invalid only insofar as it was a wholesale waiver of PAGA claims, but the agreement is enforceable insofar as it required arbitration of the employee's individual PAGA claim alleging a Labor Code violation. (*Id.* at 1924.) As such, under *Viking River, Iskanian* continues to be controlling as to the unenforceability of a wholesale waiver of PAGA claims, and only the former California rule that suggests that a single representative PAGA claim cannot be split into an arbitrable individual claim and a nonarbitrable representative claim has

been abrogated. (*Ibid.*) Here, Defendant argues, based on the U.S. Supreme Court's holding, despite the agreement's restrictions on collective or representative actions, Plaintiff can still be compelled to arbitrate his individual PAGA claims.

Plaintiff opposes Defendant's interpretation and argues that the PAGA claims asserted against Defendants are not covered by the arbitration agreement to satisfy the second element of the showing required to compel arbitration. Plaintiff points out that the agreement, in Section 2.D., expressly excludes from the scope of arbitrable claims any disputes brought on a "private attorney general basis" and based thereon argues that the claims asserted in this action is not covered by the arbitration agreement as such phrase must be interpreted to refer generally to both individual and non-individual claims brought under PAGA because even individual claims are necessarily brought on a "private attorney general basis." Plaintiff argues that the U.S. Supreme Court's holding in *Viking River* does not lead to a different result because the arbitration agreement in this case excludes PAGA actions generally and did not contemplate the individual PAGA claim versus nonindividual PAGA claim distinction and an order severing Plaintiff's individual claim to be subject to arbitration would be rewriting the contract.

Plaintiff's interpretation is supported by the case of *Hasty v. American Automobile Assn. of Northern California* (2023) 98 Cal.App.5th 1041 (Hasty) in which the court interpreted the same phrase "in a private attorney general capacity" as meaning that "an employee may not bring a claim ... either as an individual or as a nonindividual" given that an individual PAGA claim still meant that the individual is pursuing the claim in an "individual 'representative' capacity under the Act." (*Id.* at 1063.) The court noted that *Viking River* only "dealt with whether an employer could require an employee to bring Act claims in arbitration, when the employee brings such claim in his, her, or their individual 'representative' capacity under the Act." (*Ibid.*)

In reply, Defendant does not address the interpretation given by the court in *Hasty*, *supra*. Nor does Defendant provide a persuasive argument to adopt the interpretation that the phrase "in a private attorney general capacity" to mean that an employee is prohibited from arbitrating only the non-individual PAGA claims of other aggrieved employees. As noted by the court in *LaCour v. Marshalls of CA, LLC* (2025) 117 Cal.App.5th 505, "[t]he fundamental goal of contractual interpretation is to give effect to the mutual intention of the parties at the time of contract formation. (Civ. Code, § 1636.)" (*Id.* at 521.) Court "ascertain that intention solely from the written contract if possible, but also consider the circumstances under which the contract was made and the matter to which it relates." (*Ibid.*) Here, the agreement is ambiguous and fails to be explicit as to whether it was meant to distinguish arbitrable PAGA claim versus those which are not. *Viking River* was decided before the subject arbitration agreement was drafted, and this is not the situation where foresight was lacking as to the "two separate constituent pieces of a PAGA action." (*Id.* at 522.) Ascertaining the parties' mutual intent must take into account the temporal benchmark existing and known at the time. (*Ibid.*)

c. *The agreement is unenforceable on the ground of unconscionability.*

“Unconscionable arbitration agreements are not enforceable.” (*Wherry v. Award, Inc.* (2011) 192 Cal.App.4th 1242, 1245.) “To be voided on this ground, the agreement must be both procedurally and substantively unconscionable.” (*Ibid.*) “But they need not be present to the same degree.” (*Armendariz, supra*, 24 Cal.4th at 114.) Rather, the court invokes a “sliding scale” to determine unconscionability: “The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Ibid.*)

The same language discussed above also renders the agreement substantively unconscionable. Based on the interpretation provided in *Hasty, supra*, 98 Cal.App.5th 1041, the disputed language of arbitration agreement herein can only be interpreted to impose a wholesale waiver of PAGA claims which is unenforceable under existing California law.

Plaintiff also demonstrates that the arbitration agreement is at least minimally procedurally unconscionable to some degree as it was presented to him as a contract of adhesion. In support, Plaintiff submits his own declaration describing the circumstances in which the agreement was presented to him on a take-it-or-leave it basis. He states that he was already employed by Defendant when he was required to electronically sign the agreement. (Cortez Decl., ¶ 5.) He signed the arbitration agreement at work while he was busy performing his job duties. (*Id.* at 7, 17-19.) He claims that no one explained the agreement or the terms of the arbitration requiring him to waive his rights to a jury, or that he was agreeing to a waiver of class or representative action and did not understand the legal significance of the agreement. (*Id.* at ¶¶ 9-10.) Defendant did not tell Plaintiff he could negotiate any term, change the agreement, consult an attorney, or opt out. (*Id.* at ¶ 11.) He felt rushed when he signed and did not have time to carefully read and understand the agreement before signing and believed he had no realistic choice if he wanted to keep his job.

“The procedural element of an unconscionable contract generally takes the form of a contract of adhesion, which was imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.” (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071.) Plaintiff’s declaration shows that contract was of an adhesive nature.

Here, Plaintiff has demonstrated the agreement contains both procedural and substantive unconscionability. Although, Plaintiff raises a wide array of other issues present in the agreement that goes to the question of unconscionability, those issues will not be addressed.

Moreover, the unconscionability permeates the entire agreement. The chances of a court severing an unenforceable clause while preserving the remainder of the agreement decrease as the circumstances and provisions that are viewed as “rife with unconscionability” requiring the arbitration agreement to be rejected. (*Wherry v. Award, Inc., supra*, 192 Cal.App.4th at 1250.) Here, the illegal language of cannot be severed

to render the remaining portion of the agreement enforceable as the agreement expressly provide: "In the event an arbitrator or court determines a claim may be brought as a class or in a collective action, then the agreement to arbitrate that claim is null and void and such class or collective action must be brought in the appropriate court system and not in arbitration." (Id. at Section 2.D.)

Based on the foregoing, the motion is denied.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602868	STELLANTIS FINANCIAL SERVICES, INC vs PYLES	NOTICE OF APPLICATION FOR WRIT OF POSSESSION - CLAIM AND DELIVERY

Tentative Ruling:

Writ of Possession is granted. Submitted order to the Court has been signed and ordered filed. Moving party to give notice.